

# Sasmita Mishra vs Milana Kumar Mishra ..... Opposite ... on 7 July, 2021

**Author: Biswanath Rath**

**Bench: Biswanath Rath**

IN THE HIGH COURT OF ORISSA AT CUTTACK

TRP(C) No.370 of 2019

Sasmita Mishra

..... Petitioner  
Ms.S.K.Jena, Advocate

- Versus -

Milana Kumar Mishra

..... Opposite party  
Mr.S.C.Mohapatra, Advocate

CORAM:

JUSTICE BISWANATH RATH

ORDER

07.07.2021 Order No. This matter is taken up through video conferencing.

2. Heard Mr.Jena, learned counsel for the petitioner and Mr.Mohapatra, learned counsel for the opposite party.

3. During course of submission, Sri Mohapatra, learned counsel appearing for the husband submits that in the development involving application under Section 9 of the Hindu Marriage Act and pursuant to demand of the wife therein provided the husband arranged a separate accommodation for wife and husband staying there, the wife is not ready to join the husband. It is stated that pursuant to such request, husband arranged an independent resident to accommodate himself along with his wife. Unfortunately, resiling from her commitment in the conciliation proceeding, wife proceeded in the present TRP(C) application. There is no dispute to such development.

4. It is in this view of the matter and as the wife has already engaged a counsel in the application under Section 9 of the Hindu Marriage Act in the Court at Cuttack, provided the wife is not agreeing to join the husband and files an affidavit to the effect that even after husband arranging independent accommodation, keeping in view the desire of the wife that she is not ready to join, the proceeding under Section 9 of the Hindu Marriage Act may be concluded basing on such affidavit on the next date itself. This Court, however, observes in the event the wife will be agreeing to join the husband in an independent accommodation, the proceeding under Section 9 of the Hindu Marriage Act can also

be decided accordingly.

5. In the circumstance, this Court while declining to entertain the present TRP(C) application and dismisses the same with vacation of interim order dated 22.11.2019 passed by this Court in I.A. No. 406 of 2019. The trial court is directed to conclude the proceeding within maximum three dates but in terms of direction hereinabove and for the attendance of the wife at Cuttack proceeding from Dhenkanal on all the three dates, the husband is directed to deposit a sum of Rs.750/- (Rupees seven hundred fifty) only on each date at least three days before the date of posting of the proceeding and the amount be released in favour of the wife on filing of her appearance memo before the Family court, Cuttack.

6. As the restrictions due to resurgence of COVID-19 situation are continuing, learned counsel for the parties may utilize a printout of the order available in the High Court's website, at par with certified copy, subject to attestation by the concerned advocate, in the manner prescribed vide Court's Notice No.4587, dated 25th March, 2020 as modified by Court's Notice No. 4798 dated 15th April, 2021.

(BISWANATH RATH) Susil Kumar Swain JUDGE